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| Book         | Policy Manual                                   |
| Section      | BOARD POLICIES UNDER CONSIDERATION              |
| Title        | Copy of RELEASED TIME FOR RELIGIOUS INSTRUCTION |
| Code         | po5223                                          |
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#### 5223 - **RELEASED TIME FOR RELIGIOUS INSTRUCTION DURING THE SCHOOL DAY**

The Board of Education desires to cooperate with those parents who wish to provide for religious instruction for their children but also recognizes its responsibility to enforce the attendance requirements of the State.

Students shall be provided "released time" during the school day to attend a course in religious instruction conducted by a private sponsoring entity that is provided off of District property. Students will be excused and not considered absent from school during released time, provided that the following requirements are met: entity off District property, provided that the following requirements are met, such students will not be considered absent when the:

- A. student's parent or guardian gives consent in writing;
- B. sponsoring entity maintains attendance records and makes them available to the District;
- C. sponsoring entity provides and assumes liability for the student; and
- D. student assumes responsibility for any missed school work.

Transportation of students to and from released time instruction is the sole complete responsibility of the sponsoring entity, the parent, guardian, and/or student. The Board, its members, and employees are immune from liability for any injuries arising from transportation to and from released time instruction. Further, no Board funds will be expended for, and no District personnel shall be involved in the provision of religious instruction.

The District shall collaborate with a sponsoring entity to identify a time for religious instruction to be offered during the school day.

At times identified by the District during the school day, released time for religious instruction will be permitted as follows:

- A. For elementary and middle schools students, one (1) period per week.
- B. For high school students, the equivalent time to attend one (1) unit of high school credit per week.

Students shall not be excused from a core curriculum subject course to attend released time instruction.

The Board deems all graded courses to be core curriculum including, but not limited to, courses that have State-approved learning standards.

~~Released time instruction will be limited to nine (9) day(s) per school year, as established by the Superintendent, and shall not exceed fifty (50) minutes, inclusive of travel.~~

The Board of Education requires sponsoring entities to conduct criminal background checks of any instructors or volunteers. It is the responsibility of any private entity providing religious instruction during release time from the school day to annually submit to the Board an acknowledgment that it has completed criminal background checks on all instructors and volunteers and has verified that no such individual has a criminal conviction which would constitute an absolute bar offense under R.C. 3319.31(C) and otherwise prevent them from being employed with an Ohio public school district. In addition, the acknowledgment will include an affirmation by the private entity of its ongoing obligation to complete and maintain such checks on all such instructors and volunteers if/when staffing changes. Criminal background check documentation must be provided to the Board upon request.

Staff members shall not promote or discourage participation in release time programs for any religious instructional program.

Nothing herein shall constitute an endorsement of religion or infringe upon an individual's First Amendment rights.

~~Revised 6/27/16~~

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R.C. 3313.6022

Attorney General's Opinion 88-001